

## 26STCV09102 26STCV09102

County: los-angeles

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-07-20

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Case Number: 26STCV09102 Hearing Date: July 20, 2026 Dept: 9

The Court hereby

distributes a tentative Minute Order for the July 20, 2026 ISC. The parties are welcome to provide input and propose modifications to any aspect of the minute order at the Initial Status Conference. If all parties submit on the tentative minute order prior to the commencement of the July 20, 2026 ISC, the Court will adopt the tentative minute order, and the parties need not appear. However, if there is any matter that any party would like to discuss, including any proposed change to this tentative minute order, that party should not submit on this tentative but instead appear at the ISC to raise the issue.

To avoid a failure to appear, please make sure to check in with Department 9 court staff and wait for the case to be called unless you receive notification that all parties have submitted on the tentative minute order.

FELIX

VILLAMIL AGUILAR vs NATURE'S PRODUCE, et , 26STCV09102

[TENTATIVE] MINUTE  
ORDER

Plaintiff's

Counsel has failed to file proof of service of the operative Amended Summons and First Amended Complaint on all named defendants. Specifically, Plaintiff's Counsel has failed to file proof of service of the operative Amended Summons and First Amended Complaint on RICHARD POLISKY.

By no later than September

11, 2026, Plaintiff's Counsel must file either proof of service of the operative

Amended Summons and First Amended Complaint on RICHARD POLISKY or a declaration explaining the failure to file proofs of service of the operative Amended Summons and First Amended Complaint on RICHARD POLISKY, setting forth any and all efforts undertaken to attempt service of the operative Amended Summons and First Amended Complaint on RICHARD POLISKY, and explaining why sanctions (including monetary sanctions of at least \$500) should not be imposed for failure to file proof of service of the operative Amended Summons and First Amended Complaint on all of the named defendants, in compliance with California Rules of Court, Rule 3.720.

Failure to file proof of service of the operative Amended Summons and First Amended Complaint on RICHARD POLISKY by September 11, 2026 may result in the Court setting an OSC re sanctions.

All Defendants are ordered to file a timely Notice of Appearance within 30 days of service of the operative Amended Summons and First Amended Complaint on them.

If any named Defendant fails to timely respond to service of the operative Amended Summons and First Amended Complaint by filing a Notice of Appearance, Plaintiff must timely seek and obtain entry of default against all such named Defendants who fail to timely file a Notice of Appearance.

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Plaintiff has filed proof of service of the operative Amended Summons and First Amended Complaint as to certain defendants who have not timely responded to service of the operative Amended Summons and First Amended Complaint, including NATURE'S PRODUCE.

If any Defendant fails to timely respond to the service of the operative Amended Summons and First Amended Complaint by filing a Notice of Appearance, Plaintiff must pursue that Defendant's default with diligence.

The Court reminds the parties that ultimately, the Court may not enter default judgment in an

amount exceeding the amount demanded in the Complaint. (CCP 585(b).)

The Court may not grant relief not demanded in the complaint by default judgment even though that relief otherwise would have been proper. (CCP § 580(a); *Airs Aromatics, LLC v. CBL Data Recovery Technologies, Inc.* (2018) 23 Cal.App.5th 1013, 1018 (default judgment for sum in excess of that demanded in complaint is void). “It is fundamental to the concept of due process that a defendant be given notice of the existence of a lawsuit and notice of the specific relief which is sought in the complaint served upon him.” (*Marriage of Lippel* (1990) 51 Cal.3d 1160, 1166 [emphasis added].) Accordingly, prior to seeking any Defendant's default, Plaintiff may wish to review the operative Complaint to determine whether the operative Complaint gives notice of the amount of damages that Plaintiff seeks to recover in the event of a default judgment; if the operative Complaint fails to do so, it may be futile for Plaintiff to seek entry of Defendant's default without first amending the Complaint to clearly state and give notice of the amount of damages that Plaintiff is seeking to recover in the event of a default judgment. In the event that Plaintiff wishes to amend the Complaint for this purpose, the Court hereby lifts the stay to grant Plaintiff leave to file an amended complaint. If Defendant again fails to respond upon being served with the amended complaint, a request for entry of Defendant's default on the Amended Complaint may then possibly lead to a request for entry of default judgment in an amount equal to or less than that stated in the Amended Complaint. To be clear, the Court is not ordering Plaintiff to amend the operative Complaint; if, after considering the above, Plaintiff voluntarily wishes to amend the operative Complaint to give notice of the amount of damages that Plaintiff seeks to recover in the event of a default judgment, the Court hereby grants leave for Plaintiff to do so.

By no later than August

14, 2026, Plaintiff's Counsel must file either a request for entry of NATURE'S PRODUCE's default or a declaration explaining the failure to seek and obtain NATURE'S PRODUCE's default, setting forth any and all efforts undertaken to obtain NATURE'S PRODUCE's default, and explaining why sanctions (including monetary sanctions of at least \$1,000) should not be imposed for failure to timely seek NATURE'S PRODUCE's default, in compliance with California Rules of Court, Rule 3.720. Failure to comply by August 14, 2026 may result in the Court setting an OSC re sanctions.

The previously imposed stay on discovery remains in effect.

#### The Initial Status

Conference is continued to September 18, 2026 at 8:30 am. The parties are to file a Joint Initial Status Conference Report by no later than September 11, 2026 in compliance with the Court's Initial Status Conference order.

#### Plaintiff's

Counsel is ordered to give notice to all other parties and file proof of service of such.